

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SOTHEARITH CHANTY,

Petitioner

VS.

SIENNA ERIKA REYES DE MESA,

Respondent

) Case Number: FMS-25-387587

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: DONNA PETRE

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear to address the issues of Father's requested overnight visits with his son from Wednesdays to Thursday and Father's request to be allowed to take the child once a year for up to two weeks for a vacation to Cambodia. The parties may appear in person in Department 404 or remotely by Zoom Video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

At the hearing, the Court also intends to make the following findings and orders:

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On January 30, 2026, the Petitioner/Father filed a Request for Order seeking Joint Legal and Physical Custody of the child Sebastian Singh De Mess Chanty (DOB 08/21/2019). He also seeks reasonable visitation with his son. The father alleges that in July 2025, the mother took the child and has stopped all contact with him and will not respond to him as to the whereabouts of his son.

- 1 2) On March 2, 2026, the parties were sent to mediation with a return date set for April 28, 2026.
- 2 3) On April 1, 2026, the Mother/Respondent filed a Responsive Declaration to the Father's Request
- 3 for Order. In this Declaration, the Mother request sole legal and physical custody of the minor
- 4 child and that the Father's visitation be every other Saturday from 10:00 a.m. to 6:00 p.m. Father
- 5 would also have phone calls with the child 2-3 times per week for 15 minutes. The Father is not
- 6 to consume alcohol 12 hours before or during any visits.
- 7 4) On April 21, 2026, the Petitioner/Father fled a Reply Declaration seeking joint legal and physical
- 8 custody of their son with visitation every Saturday from 10:00 to 6:00 p.m. and Wednesday
- 9 overnight visits from after school until Thursday morning at school. He agrees not to consume
- 10 alcohol during his parenting time with their son nor for 12 hours prior to any visits.
- 11 5) The Father alleges in his declaration that the Mother has allowed her boyfriend(s) to sleep with
- 12 the child and her in the same bed and that her brother threatened him to get his gun unless he
- 13 signed the consent for her to get a passport to take the child to the Philippines.
- 14 6) The parties attended mediation but were unable to reach an agreement on the issues of custody
- 15 and visitation. The arears for discussion include the following:
- 16 a. Father requests joint legal custody and joint physical custody of the minor child. Father
- 17 further requests a parenting schedule as follows:
- 18 i. Father to have the minor child every Wednesday, including
- 19 1. School drop off on Wednesday mornings. Father requesting to pick
- 20 minor child up in the morning from mothers home.
- 21 2. Overnight parenting time Wednesday evening after school
- 22 3. Drop-off at school on Thursday morning
- 23 ii. Mother to resume care by picking the child up from school on Thursday
- 24 Father also requests that Mother allow the minor child to travel with Father to Cambodia
- 25 once per year for up to two (2) weeks for vacation.
- 26 b. Mother requests sole legal custody and sole physical custody of the minor child. Mother
- 27 further requests that Father have parenting time with the minor child every other Saturday
- 28 from 10am-6pm.
- 29

1 **B. Findings and Order**

2 1) This court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child(ren) is the United States.

6 2) The court orders that the parties shall have joint legal and physical custody of their son.

7 3) The Father shall have parenting time with his son every Saturday from 10:00 am to 6 pm.

8 **4) The parties are ordered to appear to address the issues of Father's requested overnight**
9 **visits with his son from Wednesdays to Thursday and Father's request to be allowed to take**
10 **the child once a year for up to two weeks for a vacation to Cambodia. The parties may**
11 **appear in person in Department 404 or remotely by Zoom Video. If a party chooses to**
12 **appear by video, that party must abide by the Notice and Instructions for Remote**
13 **Appearance in San Francisco Family Court set forth above.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MELINDA SHERMAN CARPENTER,

Petitioner

VS.

MATTHEW CALEB CARPENTER,

Respondent

) Case Number: FDI-21-794899

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: DONNA PETRE

REQUEST FOR ORDER: MOTION TO COMPEL RESPONDENT TO EXECUTE JUDGEMENT
PAPERWORK; REQUEST FOR ORDER: ENFORCEMENT OF FINDINGS AND ORDER AFTER
HEARING DATED SEPT 9, 2024 (EQUALIZING PAYMENT)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Melinda Carpenter (Wife) and Respondent Matthew Carpenter (Husband). The parties married on 10/12/2013. The parties agree their date of separation is 11/11/2019, for a marriage of 6 years and 1 month. The parties have one minor child, Jack (DOB: 2/17/2016). Both parties are currently self-represented.
- 2) No Judgment has been entered to date in this matter.
- 3) On 8/29/2024 (per the Findings and Order After Hearing filed 9/9/2024), Judge Costin held a long-cause hearing. Wife was represented by attorney Karl Siganporia and Husband was self-represented. Judge Costin made various orders to divide the parties' community estate and ordered Wife to pay Husband a net amount of \$14,118.41 as an equalizing payment, in installments of \$300 per month for a period of 48 months commencing October 2024, with the final payment to be made in September 2026. Judge Costin also stated that the Court's

1 jurisdiction over the issue of spousal support would terminate 60 days after the filing of the
2 Findings and Order After Hearing. Judge Costin awarded the parties joint legal and joint physical
3 custody of Jack. Finally, Judge Costin ordered Wife to prepare the Judgment and Notice of Entry
4 of Judgment for the Court's review.

- 5 4) Now on for hearing are two motions. The first motion is Husband's Request for Order filed
6 2/3/2026 asking the Court to enforce the Findings and Order After Hearing filed 9/9/2024.
7 Husband states Wife paid one installment payment to him in October 2024 and has not made
8 additional payments since then. Husband states Wife has taken the position that Husband needs to
9 sign various Judgment documents before further payments can be made (including the FL-130,
10 FL-141, FL-144, and FL-170). Husband also notes that there is a mathematical inconsistency with
11 the payment schedule (namely, 48 months x \$300 per month overshoots the amount owed of
12 \$14,118.41, and there are 24 months between October 2024 and September 2026, not 48 months).
13 Husband asks the Court to:

- 14 a. Order Wife to reimburse Husband for enforcement-related expenses (\$525 Husband paid
15 for a one-hour consultation with a family law attorney, plus costs incurred for filing, e-
16 filing, and service of the Request for Order);
17 b. Confirm and enforce the 9/9/2024 Findings and Order After Hearing;
18 c. Determine the total arrears owed, including missed installments;
19 d. Clarify the correct payment schedule, including the total amount owed, the number of
20 months, and the correct end date;
21 e. Order immediate payment or establish an enforcement mechanism; and
22 f. Clarify that Petitioner's payment obligation is not conditioned on Respondent's signing
23 additional judgment processing documents.
- 24 5) On 3/9/2026, Wife filed a Responsive Declaration stating that she does not consent to the orders
25 requested. Wife states she was following her attorney's direction to withhold payment until
26 Respondent signed various Judgment documents (FL-130, FL-170, and FL-144). Wife states
27 Husband has been "sitting" on these documents and refusing to sign them since 10/22/2024.
28 However, Wife also states she has "paid the installments to date and am current, and will continue
29 to pay until equalizing payment is complete." Wife states that \$5,400 has been paid as of

3/9/2026 and that the remaining balance due is \$8,718.41. Wife states that she plans to continue paying \$300 per month through August 2028 and that her last payment will be \$318.41 to satisfy the total amount owed.

6) Husband did not file a Reply Declaration.

7) The hearing on Husband's 2/3/2026 Request for Order was originally set to be heard on 3/24/2026. The Court continued the hearing on Husband's 2/3/2026 Request for Order to 4/28/2026 to join the hearing set on Wife's related Request for Order filed 3/9/2026.

8) Also on for hearing is Wife's Request for Order filed 3/9/2026 asks the Court to order Husband to sign the following forms: FL-130, FL-170, and FL-144. Wife attached to her Request for Order a Judgment reject letter issued by a Court clerk requesting these three forms.

9) On 4/15/2026, Husband filed a Responsive Declaration. Husband does not consent to Wife's requested orders. He states he has not signed the requested documents because they contain "errors and inconsistencies" and he cannot sign documents under penalty of perjury which contain errors. Husband cites the clerical errors in Judge Costin's order regarding the number and amount of installment payments. Husband states that Wife only resumed payments after he filed his Request for Order.

10) Wife did not file a Reply Declaration.

B. Findings and Order

1) The Court finds there is a mathematical error in Section B of the Findings and Order After Hearing filed 9/9/2204. The Court hereby corrects the last paragraph of Section B to read: "This payment shall be made in installments, at the rate of \$300 per month for a period of 46 months and then a final payment in the 47th month of \$318.41. Payments shall be made by the 15th of each month, beginning in October of 2024, with the final payment to be made in September 2028."

2) Based on the parties' declarations, the Court finds that Wife is currently up to date with her installment payments and no arrears are owed.

3) The Court does not find good cause to award Husband attorney's fees sanctions and his request is denied.

1 4) The Court finds good cause to waive the requirement that the parties sign and file an FL-130 and
2 FL-170.

3 5) Wife filed a Declaration Regarding Service of Final Declaration of Disclosure on 8/12/2024.
4 Husband has not filed a Declaration Regarding Service of Final Declaration of Disclosure;
5 however, Wife requested that Husband sign a waiver of Final Declaration of Disclosure. The
6 Court hereby waives the requirement that Husband serve a Final Declaration of Disclosure.

7 6) The Court will prepare a Judgment which incorporates the Findings and Order After Hearing filed
8 9/9/2024 as well as the Findings and Order After Hearing for the 4/28/2026 hearing date. The
9 parties do not need to submit any additional Judgment-related documents. The Judgment will be
10 mailed to the parties by 5/15/2026.

11 7) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NATIYA SURIYA NAMESNY,

Petitioner

VS.

MARKUS JAN NAMESNY,

Respondent

) Case Number: FDI-23-797463

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: DONNA PETRE

REQUEST FOR ORDER OF VISITATION (PARENTING TIME); REQUEST FOR ORDER FOR
CHANGE OF CHILD CUSTODY AND VISITATION

TENTATIVE RULING

The parties are ordered to appear to address the following issues: (a) parenting schedule and monthly schedule and (b) Winter and Summer Break. The parties may appear in person in Department 404 or remotely by Zoom Video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

At the hearing, the Court also intends to make the following findings and orders:

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On January 9, 2026, the Mother/Petitioner filed a Request for Order seeking a modification of the child custody and visitation order regarding the child Charlotte Suriya Namesny (DOB 09/16/2019)
- 2) Pursuant to the terms of a Marital Settlement Agreement dated December 29, 2023, the parents share joint legal and physical custody of their child. The agreement set out no specific parenting

1 schedule but rather the parents' agreement that 'they will work cooperatively' with a recognition
2 that "frequent and continuing association between themselves and their child is in the best
3 interests of the child."

4 3) On January 15, 2026, the Father/Respondent filed a Request for Order regarding Visitation. The
5 Father's request seeks, as does the mother, that the parents share joint legal and physical custody
6 of their child.

7 4) On February 6, 2026, the Father/Respondent filed a Responsive Declaration to the
8 Petitioner/Mother request re Visitation.

9 5) On February 6, 2026, the Mother/Petitioner filed a Response to the Petitioner's Request for
10 Orders re Visitation.

11 6) On February 11, 2026, the Petitioner/Mother filed a Reply Declaration in support of her Request
12 for a modification of Child Custody and Visitation.

13 7) On February 13, 2026, the Father/Respondent filed his Reply in support of his Request for order
14 re Visitation.

15 8) On February 24, 2026, the parties appeared and were referred to mediation with a return date of
16 April 28, 2028.

17 9) Both parties attended mediation on March 24, 2026.

18 10) On April 17, 2026, the Respondent/Father filed an updated declaration in support his request for
19 order.

20 11) On April 22, 2026, the Petitioner/other filed a Reply Declaration to the Respondent/Father's
21 updated Declaration of April 17, 2026.

22 12) The parties attended mediation and were unable to reach an agreement. The following is a
23 summary of the areas for discussion:

24 25 **Parenting Schedule**

26 Mother is requesting a 6/5 parenting schedule on a repeating eleven (11) day cycle. The minor
27 shall reside with mother for five (5) consecutive days, followed by five (6) consecutive days with
28 father, and the schedule shall repeat continuously.

1 Parenting time shall begin after school on the first day of each parent's custodial period. On non-
2 school days, exchanges shall occur at 9:00 a.m. at mother's residence.

3 4 **Monthly Scheduling**

5 Mother shall provide her work schedule to father by the 23rd of each month to assist with
6 coordinating parenting time. Father shall notify mother within three (3) days if the proposed
7 schedule does not work for him.

8 9 **Winter Break**

10 Mother is requesting ten (10) consecutive days of parenting time during winter break in even-
11 numbered years.

12 13 **Summer Break**

14 Mother shall have two (2) consecutive weeks of parenting time during the summer. Father shall
15 have two (2) consecutive weeks immediately following mother's time. After the initial four (4)
16 weeks, the regular 6/5 parenting schedule shall resume.

17 18 **Travel and Passport**

19 Father shall cooperate with mother in renewing the minor's passport.

20 Mother is requesting to be the holder of the minor's passport.

21 Mother may travel internationally with the minor, including travel to Thailand, and shall provide
22 father with all travel details, including flight information no later than ninety (90) days prior to
23 departure.

24 Each parent may travel with the minor up to two (2) times per year, for trips not to exceed
25 fourteen (14) days per trip.

26 27 **Education Expenses**

28 Father shall notify mother by the end of the minor's school year if he is unable to pay for the
29 minor's schooling.

1 **Tax Claim**

2 Mother is requesting to claim the minor as a dependent on her taxes each year.

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4 **Childcare During Parenting Time**

5 If Father is unable to care for the minor during his parenting time, mother shall assist him with
6 vetting a nanny, at the father's expense. Parenting Schedule

7 Mother shall have two (2) weeks of parenting time with the minor during summer break. Said
8 weeks shall not be exercised consecutively.

9
10 **Emergency Childcare**

11 Mother shall be reasonably flexible with her work schedule, when possible, if father is
12 unavailable to care for the minor in emergency situations and mother is in town.

13
14 **Parenting Time**

15 Father is requesting a 6/4 parenting schedule on a repeating 10-day cycle. The minor shall reside
16 with father for six (6) consecutive days, followed by four (4) consecutive days with mother, and
17 this schedule shall repeat continuously.

18 When school is not in session, the parent beginning their custodial time shall pick up or drop off
19 the minor at the other parent's residence at 10:00 a.m., unless otherwise agreed.

20
21 **Monthly Scheduling**

22 Father shall provide Mother, by the 12th day of each month, with any dates he is unavailable to
23 care for the minor. Mother shall provide Father, by the 19th day of each month, with her work
24 schedule.

25
26 **Winter Break**

27 Father is requesting parenting time with the minor every year during winter break from the
28 commencement of the school break until December 26 at 7:00 p.m. Father shall transport the
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1 minor to mother's residence on December 26, and mother shall have parenting time from
2 December 26 at 7:00 p.m. until the conclusion of the school break.

3
4 **Summer Break**

5 Mother shall have two (2) weeks of parenting time with the minor during summer break. Said
6 weeks shall not be exercised consecutively.

7
8 **Emergency Childcare**

9 Mother shall be reasonably flexible with her work schedule, when possible, if father is
10 unavailable to care for the minor in emergency situations and mother is in town.

11 **B. Findings and Order**

- 12 1) This court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child(ren) is the United States.
- 16 2) **Custody:** The Parents shall have joint legal and physical custody of their child Charlotte
17 (Charlie) Namesny.
- 18 3) **Educational Expenses:** The Father agrees to pay for all the private school expenses for the
19 school year of 2025-2026 if he is unable to continue to pay these expenses, he will notify the
20 Mother by the end of the school year.
- 21 4) **Tax Claim:** The Parents shall alternate the tax claim for the child. If the Father claimed the child
22 on his taxes for 2025, then the Mother shall be allowed to claim the child on her taxes for 2026.
- 23 5) **Child Care During Parenting Time and Emergency Childcare:** If either the father or mother
24 is unable to care for the minor child during their parenting time, each parent shall assist the other
25 parent in caring for the child, if they are able, and if they are unable to care for the child, they
26 shall assist the parent in vetting a nanny, at that unavailable parent's expense. Mother shall be
27 reasonably flexible with her work schedule, when possible, if father is unavailable to care for the
28 minor in emergency situations and mother is in town.
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- 1 6) **Travel and Passport:** Both parents shall cooperate in renewing the minor's passport. Unless the
2 parents can agree who shall be the holder of the child's passport, the passport shall be held by
3 Family Court Services (FCS). FCS shall hold the minor child's passport when neither parent is
4 traveling internationally. If either parent will be traveling internationally pursuant to a Court order
5 or written agreement of the parties, either parent may contact FCS up to two weeks in advance to
6 retrieve the passport. The passport must be returned to FCS within two weeks of returning from
7 an international trip with the child. With the written consent of the other parent, either parent may
8 travel internationally with the minor and shall provide the other parent with all travel details,
9 including flight information, no later than ninety (90) days prior to departure.
- 10 7) **The parties are ordered to appear to address the following issues: (a) parenting schedule**
11 **and monthly schedule and (b) Winter and Summer Break. The parties may appear in**
12 **person in Department 404 or remotely by Zoom Video. If party chooses to appear by video,**
13 **that party must abide by the Notice and Instructions for Remote Appearance in San**
14 **Francisco Family Court set forth above.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SHERIE MARIE SORENSEN,

Petitioner

VS.

JACOB ERIK SORENSEN,

Respondent

) Case Number: FDI-25-801143

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: DONNA PETRE

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 404 or remotely by Zoom Video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On December 16, 2025, the Respondent Jacob Sorensen filed a Request for Order for Joint Legal and Physical Custody of Gianna Sorensen (DOB 04/27/2011) and the two family dogs, Roxie and Brookie. The father requests family therapy with his daughter.
- 2) The matter was heard on February 2, 2026, and the parties were sent to mediation with a return date of March 19, 2026.
- 3) On March 6, 2026, the Mother filed a Responsive Declaration with accompanying Points and Authorities to the Father's Request for Order. In the Response, the Mother consented to joint legal custody and sole physical custody of Gianna.

- 1 4) She consented that the father and Gianna would engage in individual therapy in lieu of family
2 therapy and that the therapy would not be terminated until mutually agreed between both parents
3 and/or the recommendation of the therapist. She opposed joint legal and physical custody orders
4 for the two dogs since they are personal property and should be considered as part of the overall
5 division of their property.
- 6 5) On March 12, 2026, the Father filed a Reply Declaration requesting joint legal and physical
7 custody of Gianna as well as family therapy in conjunction with individual therapy.
- 8 6) On March 19, 2026, the Court held this matter and issued the following orders:
- 9 a. Minor shall continue with the current individual therapy
- 10 b. Both parties shall participate in co-parenting counseling. The parties shall split the cost.
- 11 c. The parties shall have Joint Legal custody of the Minor
- 12 d. Physical custody is granted to the Mother.
- 13 e. No visitation time is granted to the Father at this time
- 14 f. Mother shall provide weekly updates to the Father on Minor's general well-being
- 15 g. The Court reserved on dog issue and this will be revisited at a future hearing.
- 16 h. There shall be no disparagement by one parent of the other parent to or in front of the
17 minor child.
- 18 i. The matter was continued for a Review Hearing in Department 404 on April 28, 2026
- 19 7) On April 23, 2026, the Mother filed a Declaration regarding the Review Hearing. In this
20 declaration the Mother states that Gianna is in therapy and the parties have not been able to begin
21 co-parent counseling.
- 22 8) On April 24, 2026, the Father filed a Declaration regarding the Review Hearing the Father
23 requests:
- 24 a. Reunification therapy begin with his daughter, and she continue with her individual
25 therapy.
- 26 b. Mother to provide more substance in her updates on Gianna including information on
27 school and general well-being.
- 28 c. That Esther Martino be appointed as their co-parent counselor
- 29 d. Deny Tier II evaluation

1 e. Joint custody of the two family dogs.

2 **B. Findings and Order**

3 1) This court has jurisdiction to make child custody orders in this case under the Uniform Child
4 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
5 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
6 child(ren) is the United States,

7 2) **The parties are ordered to appear. The parties may appear in person in Department 404 or**
8 **remotely by Zoom Video. If a party chooses to appear by video, that party must abide by**
9 **the Notice and Instructions for Remote Appearance in San Francisco Family Court set**
10 **forth above.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

WENJING MITSCHA,

Petitioner

VS.

ANDREW EDWARD MITSCHA,

Respondent

) Case Number: FDV-25-818435

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: DONNA PETRE

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 404 or remotely by Zoom Video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On September 3, 2025, the Respondent Andrew Mitscha filed a Request for Order for a Modification of the Domestic Violence Restraining Order issued against him so that he would be allowed unsupervised visitation with his son Edward Mitscha (02/06/2022) on Saturdays from 8:00 a.m. to 6:00 p.m.
- 2) On October 13, 2025, the parties appeared and were referred to Family Court Services for mediation with a return date of January 13, 2026.
- 3) On December 30, 2025, the Mother fled a Memorandum of Points and Authorities stating that pursuant to an order after hearing of her Domestic Violence Restraining Order Request, dated

December 18, 2024, the Father is to have professional supervised visits with his son for one hour in San Francisco every two weeks and that he was to pay 100% of the cost. On November 21, 2025, the Mother alleges that a Criminal Protective Order was issued. She alleges that this order prohibits all communication between her and the Father so that the “peaceful contact” exception for court ordered visitation in the Domestic Violence Restraining Order would violate the Criminal Protective Order and as such, she requests that the Domestic Violence Restraining Order be amended to remove the exception for peaceful contact.

4) A hearing was held on January 13, 2026, and at its conclusion the court issued the following orders:

- a. All communications between the parents through Talking Parents is suspended. Father may communicate with Petitioner’s counsel via email regarding family law matters
- b. Father shall enroll in and attend the anger management class as previously ordered
- c. The supervised visitation orders shall continue. Father shall professionally supervised visitation through Rally Visitation Services for one hour every other weekend subject to Rally’s availability. Father shall pay all fees for Rally. Rally shall facilitate communication with the parties to schedule the visitation.
- d. Mother’s counsel shall mail and email any relevant previous orders to Father to ensure he has the orders including the 11/6/24 Amended Restraining Order and 8/12/2024 Order
- e. The Parties shall return for a review hearing on April 28, 2026, at 9:00 a.m.in Department 404.
- f. All prior orders not in conflict with these orders shall remain in full force and effect.

5) On April 13, 2026, the Father filed a Declaration with the Court stating that he is currently engaged in anger management classes and he would like his parents to be able to supervise his visits with his son.

6) On April 20, 2026, the Mother and her attorney filed Declarations regarding communications from the Father.

B. Findings and Order

1) This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child(ren) is the United States.

- 3 2) **The parties are ordered to appear. The parties may appear in person in Department 404 or**
4 **remotely by Zoom Video. If a party chooses to appear by video, that party must abide by**
5 **the Notice and Instructions for Remote Appearance in San Francisco Family Court set**
6 **forth above.**